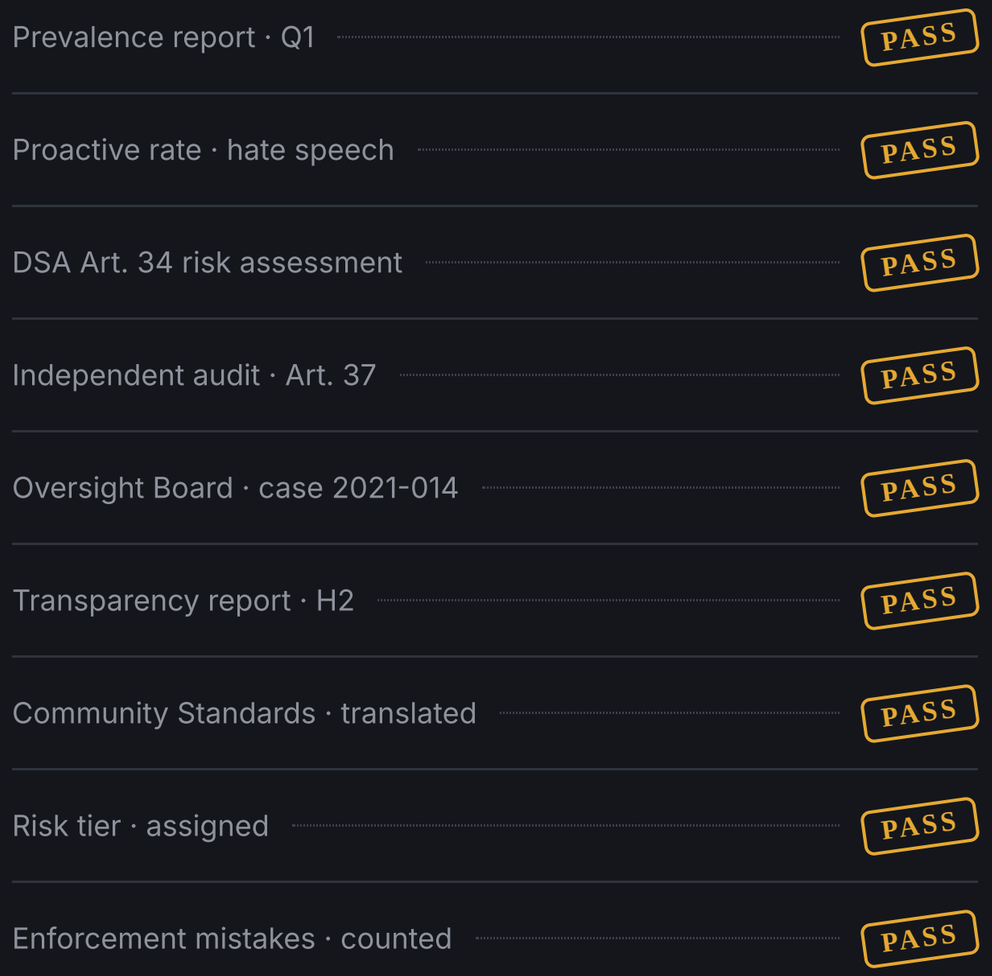
A THEORY OF DEFENSIBILITY FOR AI AUDITS

The Burden of Truth

What an audit can still establish when there is no right answer to check against

Cam Kormylo · Heng Xu · Nicholas Berente
Mendoza College of Business · University of Notre Dame



THE MOST AUDITED AI SYSTEM IN THE WORLD

Every audit **passed**.

1. **Quarterly enforcement metrics**
   Prevalence, proactive rate, and since 2025 a count of "mistakes"
   PASS

2. **Independent audit under the EU Digital Services Act**
   EY, 2024. 54 sub-articles. Over 90% fully compliant. No adverse conclusions.
   PASS

3. **A standing review body**
   The Oversight Board. Twenty-plus members. Binding on individual posts.
   PASS

2015 · Myanmar

Two Burmese-speaking reviewers for a country that ran on Facebook. The UN later said the platform's role bore the hallmarks of genocide.

2020 · Ethiopia

Five years later, with Myanmar as evidence, no hate-speech classifier in Amharic or Oromo as a civil war began.

Five years later, the same thing in Ethiopia, with Myanmar on the record as evidence.

Meta, "Meta's Progress Implementing the Digital Services Act," Nov 2024 · Reuters, "Why Facebook is losing the war on hate speech in Myanmar," Aug 2018 · Facebook Files (CNN, WSJ), Oct 2021

THE CLAIM

An audit can ask one of two questions

Is it correct?

VERIFICATION

Compare the system's outputs to a standard fixed in advance. The logic IS audit inherited from financial audit.

Was reliance justified?

DEFENSIBILITY

Examine the organization's judgment to depend on the system, given the evidence, the uncertainty, the people responsible, and the stakes.

1 Why the first question stops working

2 What the second one requires

3 Two audits of one deployment

The talk: why the first question stops working, what the second one requires, and two audits of one deployment.

Verification rests on four requirements

VERIFICATION

Assertions

that can be true or false

Evidence

that confirms or disconfirms them

Determinate states

a subject matter with facts to compare against

Criteria

established in advance

- A ledger reconciles or it doesn't.
- A transaction meets its specification or it doesn't.
- A known abuse image hash-matches or it doesn't.

Where those hold, verification works, and some moderation is like this.

Committee on Basic Auditing Concepts (Silvoso, 1972) · Power (1997) · Kroll et al. (2017), Raji et al. (2020), NIST AI RMF (2023), EU AI Act (2024)

PART 1 · THE PROBLEM

A post is not a ledger entry

> "Clean the cockroaches."
>
> Translated from Amharic. Posted during the Tigray war, 2020 to 2022.

ANNOTATOR 1

Remove

Dehumanizing term for Tigrayans in this dialect

ANNOTATOR 2

Keep

Idiom. No target named. Could be about pests.

ANNOTATOR 3

Remove

Context: posted in a militia group

ANNOTATOR 4

Unsure

Depends who is reading and when

GROUND TRUTH = whichever of these the labeler happened to be

Assertions	Evidence	~~Determinate states~~	Criteria

Take away determinate states and the other three requirements fall with it. We call this epistemic indeterminacy.

DAIR Institute study of moderation during the Tigray war (2025) · Lebovitz, Levina & Lifshitz-Assaf, MISQ (2021) · Goodman et al., JAMA (2024)

Two reflexes, and why each makes it worse

Measure it

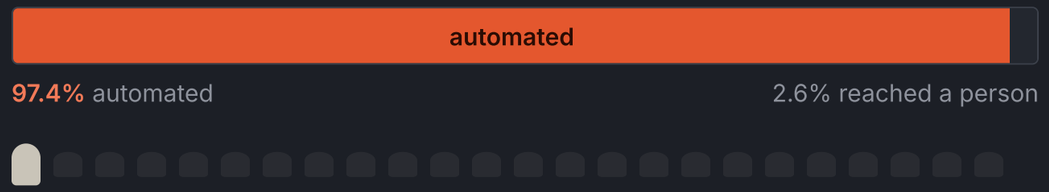
"Our LLMs make 13% fewer errors than human reviewers."



Fewer errors measured against what? Against the human labels. The contested thing is the yardstick.

Wait for it to improve

97.4% of hate-speech removals on Instagram were automated in Q1 2025.



The better the system, the fewer humans ever see the rare failure in the rare language. Showing a 1-in-1,000 error rate takes about 3,000 clean cases.

Verification costs more and catches less, exactly as reliance grows.

So verification costs more and catches less at exactly the moment the organization relies on it more.

Financial Times reporting on Meta's LLM moderation (2026) · Meta Q1 2025 Integrity Report via Wired · Kalra & Paddock (2016) · Bainbridge (1983) · Parasuraman & Manzey (2010)

PART 1 · THE PROBLEM

What verification produces when it cannot verify

REGULATION (EU) 2022/2065 · THE DIGITAL SERVICES ACT

Art. 34(1). Providers of very large online platforms shall diligently identify, analyse and assess any systemic risks in the Union stemming from the design or functioning of their service…

COPY

INDEPENDENT AUDIT REPORT · AUDIT CRITERIA

Art. 34(1). Providers of very large online platforms shall diligently identify, analyse and assess any systemic risks in the Union stemming from the design or functioning of their service…

FULLY COMPLIANT

"EY will not provide … opinions of legal interpretation."

Service agreement, audit report appendix

"Making interpretations, defining ambiguous terms" is Meta's responsibility.

EY assurance report

"Some of these kinds of self-assessments have become box-checking exercises that miss significant risks."

Former Meta executive, to NPR, 2025

Power called this a ritual of verification. No bad faith is needed. A forum that cannot judge reliability judges the paperwork, and organizations rationally produce paperwork.

DSA Observatory, "Shortcomings of the first DSA audits," June 2025 · NPR, May 31 2025 · Power, The Audit Society (1997) · Bovens (2007) · Edelman (1992)

PART 2 · THE SOLUTION

Audit the judgment to rely, not the output

THE AUDIT OBJECT, TODAY

The post

Remove or keep?

THE AUDIT OBJECT, PROPOSED

The decision to rely

on automated detection, at full scale, in Amharic, during a civil war

Evidence
What did they know?

Actors
Who can answer for it?

Threshold
How sure did they have to be?

"Probably the strictest standard we can generally satisfy with real-world problems of this complexity."

Herbert Simon, 1996

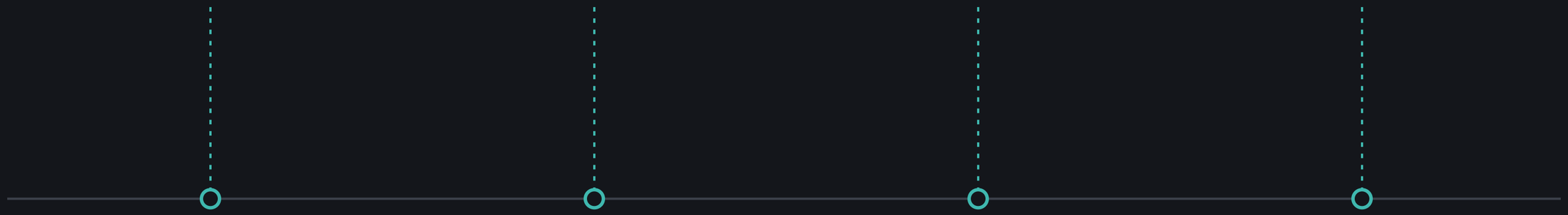
Simon, on defensibility as a standard.

Simon, The Sciences of the Artificial (1996, p. 146) · Toulmin (2003) · Rudner (1953) · Douglas (2009) · Bovens (2007)

CONDITION 1 · EVIDENTIAL SUFFICIENCY

The evidence existed. It did not **govern**.

RELIANCE ON AUTOMATED DETECTION · FULL SCALE · UNCHANGED



JUN 2020

Internal audit

"Significant gaps in our coverage (especially in Myanmar & Ethiopia) … our current signals may be inadequate." No classifier for Amharic or Oromo.

NOV 2020

War begins

Tigray conflict starts. Reliance on automated detection continues at full scale.

MAR 2021

Internal report

Headline in bold: "Current mitigation strategies are not enough."

2021

Internal roadmap

Ethiopia rated in "dire" risk of violence. Own capacity rated 0 out of 3.

Relevant to this deployment	YES
Read in light of its limits	YES
Affected the decision	NO

Two of three clauses met. Verification never tests the third, because the third is about the judgment.

Facebook Files via CNN and WSJ, Oct 2021 · Wired, Dec 2022 (Kenyan lawsuit filings) · Council on Foreign Relations, 2022

CONDITION 2 · EPISTEMIC ANSWERABILITY

Who can answer for the **whole**?



OVERSIGHT BOARD, DEC 2021

Recommended an independent human-rights assessment of Meta's role in Ethiopia

META, JAN 2022

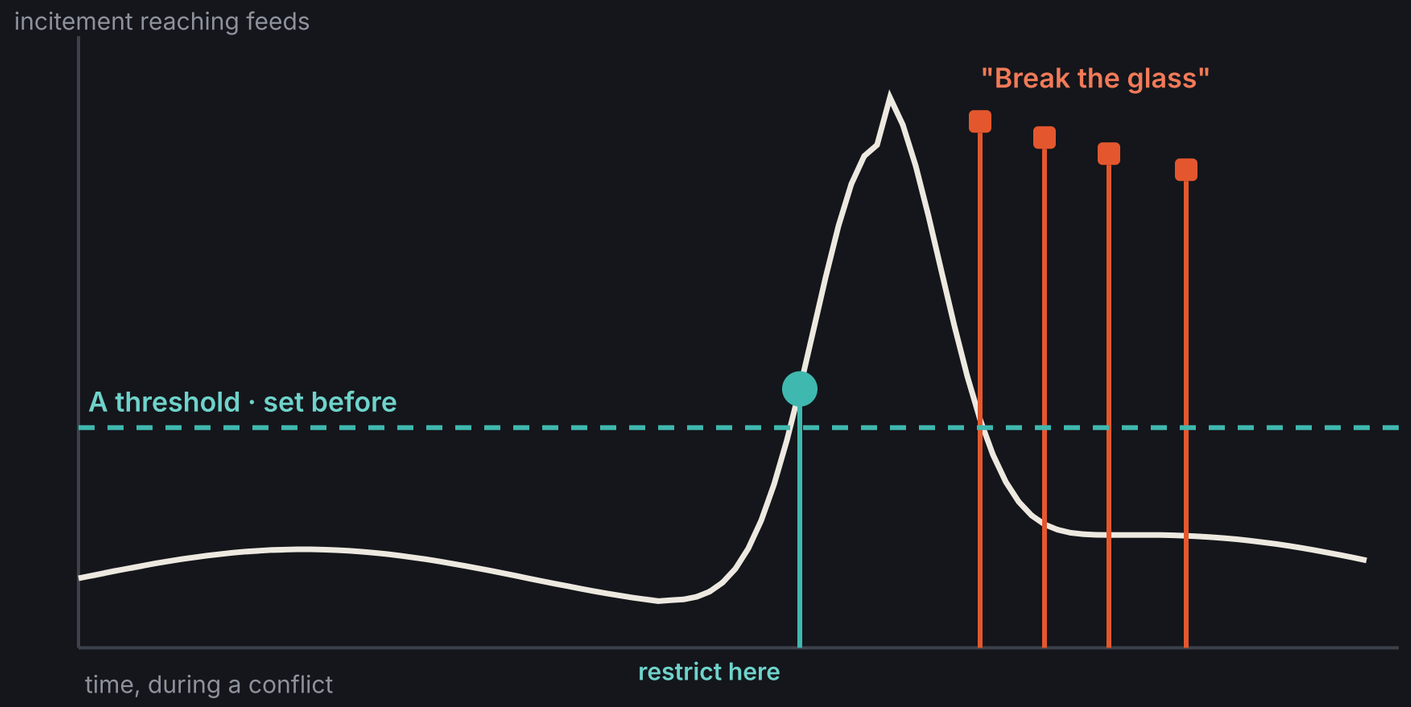
Would "assess the feasibility" of commissioning one

The organization answered with a feasibility study. That is nominal responsibility without the capacity to give an account.

Oversight Board decision 2021-014-FB-UA · Reuters, Jan 2022 · Nissenbaum (1996) · Bovens (2007) · Lerner & Tetlock (1999)

CONDITION 3 · PROPORTIONAL THRESHOLD

Set **before**, or inferred after



"Break the glass"

Dozens of enforcement levers pulled during exceptionally inciteful events

A threshold

Conditions for restricting virality in a country at war, fixed before the spike, with a named group authorized to pull them

January 2025: Meta publicly raised confidence thresholds and tiered automated enforcement by severity. Whatever one thinks of the policy, that is a threshold stated in advance. Whether the tiers fit the stakes is exactly what a forum should examine.

One contrast, and one caution.

Wired, Dec 2022 (internal "break the glass" documents) · Meta, Jan 7 2025 · Bernoulli (1713) · Douglas (2009)

PART 2 · THE SOLUTION

Three parts of one justification



Incomplete is a different defect from **weak**.

Non-compensatory. Not a scorecard that sums across dimensions.

Defensible does not mean **safe**.

The finding concerns the decision, on what was knowable when it was made.

And a finding of defensible reliance does not say the platform is safe. It says the decision was justified on what was knowable at the time.

PART 3 · TWO AUDITS OF ONE DEPLOYMENT

Same facts. Opposite findings. Neither depends on the harm.

VERIFICATION AUDIT · MID-2020

- Proactive detection rate high
- Community Standards translated into Amharic and Oromo
- Ethiopia assigned to the highest risk tier
- Transparency reports filed on schedule

CONFORMS · MID-2020

CONFORMS · NOV 2021

DEFENSIBILITY AUDIT · MID-2020

- Evidence fit the deployment and was ignored
- No one positioned to answer for the whole
- No threshold before the spike, only levers after

INDEFENSIBLE · MID-2020

INDEFENSIBLE · NOV 2021

WHAT DEFENSIBLE RELIANCE WOULD HAVE REQUIRED

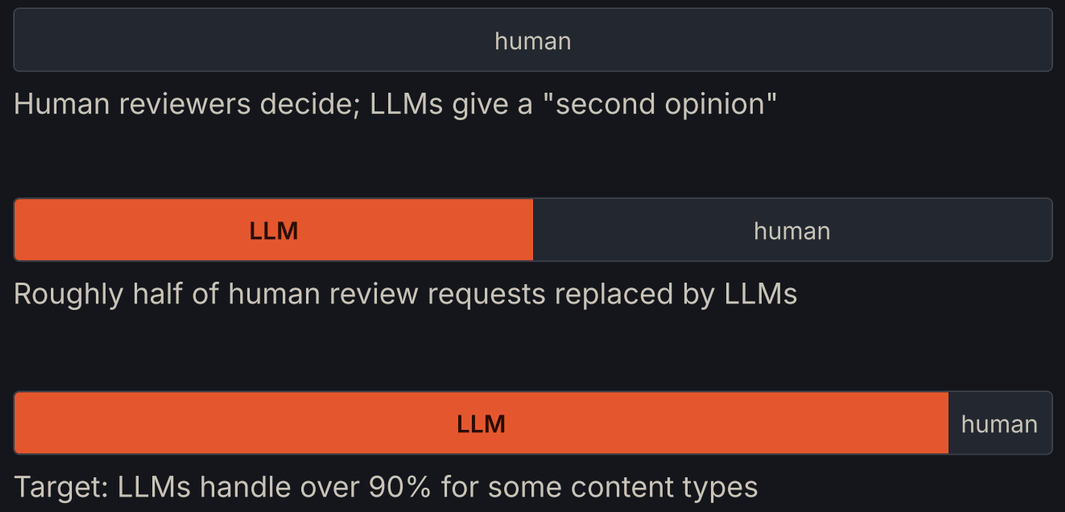
- Demonstrate classifier performance in the four languages before relying at scale
- Name a group with authority to restrict virality in the country
- Fix the restriction conditions before the conflict, not during it

What defensible reliance would have required is exactly what Meta did later, and what Amnesty says came too late.

Amnesty International, "A death sentence for my father," Oct 2023 · Wired, Dec 2022 · Facebook Files, Oct 2021

PART 3 · RIGHT NOW

The judgment is being made again



AND THE RISK REVIEW ITSELF

instant decision

Up to 90% of Meta's own product risk assessments to be automated. Product teams fill in a questionnaire and receive an "instant decision." Areas include AI safety, youth risk, and integrity.

Proposition 2. As reliability rises, the evidence needed to verify grows and human scrutiny falls, so the justification for reliance needs more support, not less.

Reliance is renewed every day. Is the justification?

Financial Times, 2026 · NPR, "Meta plans to replace humans with AI to assess privacy and societal risks," May 31 2025

IMPLICATIONS

The forum exists. It asks the wrong question.

Oversight Board

TODAY

Judges individual posts

COULD ASK

Was the evidence fit for this deployment, and did it change the decision?

European Commission

TODAY

Judges compliance with the statute

COULD ASK

Who can account for the whole judgment, and what would have changed it?

Courts

TODAY

Judge the harm, afterward

COULD ASK

Was the threshold set before the results, and did it match the stakes?

Not a guarantee of safety or correctness

Not a replacement for technical evaluation or compliance

Not a theory of whether the platform should exist at all

Three limits, stated fast.

When truth cannot be established, the burden it would have carried passes to those who act, as an obligation to justify.

Meta passed every audit it was given.

Nobody gave it the one that asked whether anyone was right to rely.

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